

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503668	VISTA MONTANA, A CALIFORNIA NON-PROFIT MUTUAL BENEFIT CORPORATION. VS WILDER	MOTION TO VACATE ORDER UNDER CCP 473 (B)

Tentative Ruling:

Motion to Vacate Order DENIED.

Defendant/Cross-Complainant Wilder fails to show sufficient basis for granting of vacating the order pursuant to CCP 473(b). Defendant is reminded that the court's own law and motion rules provide that tentative rulings are posted at 3:00 p.m. prior to the hearing date and the procedure to request for oral argument by 4:30 p.m. Additionally, Defendant references the court's minute order from 5.07.26 that she did not receive notice in time to request oral argument. However, the minute order from May 7th indicating the prevailing party was to give notice, was in relation to giving notice of the results of the hearing on May 7th.

Defendant also addresses in her motion to vacate that there was a lack of service of the Complaint or First Amended Complaint. The hearing on May 7th did not involve service of the complaint upon Defendant and the court notes that Defendant filed an answer to the First Amended Complaint on 7.14.25. The Defendant is reminded that the hearing on May 7th was in regard to the deficiencies of Defendant's service of her cross-complaint upon Plaintiff/Cross-Defendant Vista Montana.

Case Management Conference confirmed for 6.26.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2505664	MERCEDES-BENZ FINANCIAL SERVICES USA LLC VS BASENTSYAN	MOTION TO STRIKE ANSWER ON COMPLAINT OF MERCEDES-BENZ FINANCIAL SERVICES USA LLC AS TO SJ WHOLESALE, INC.

Tentative Ruling:

Motion to Strike Answer GRANTED. No opposition filed by Defendant.

Defendant to file an answer through an attorney within 60 days. The court is giving Defendant time to hire counsel to address the mistaken identity claim.

An OSC re status of representation of Defendant SJ Wholesale is set for 9.17.26. Failure to timely file an answer or obtain representation will result in default.

Case Management Conference confirmed for 9.17.26.